



Dentists Act 1983

1983 CHAPTER 38

An Act to amend the Dentists Act 1957 and for connected purposes. [13th May 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

THE GENERAL DENTAL COUNCIL

1.—(1) Part I of Schedule 1 to the Dentists Act 1957 (constitution etc. of General Dental Council) shall be amended in accordance with this section; and in this Act the Dentists Act 1957 and the General Dental Council are referred to as “the principal Act” and “the Council” respectively.

Constitution of Council and remuneration of members.
1957 c. 28.

(2) In paragraph 2(1) (Council to consist of eighteen members apart from those nominated by dental authorities) for the words “eighteen members” there shall be substituted the words “the President and twenty-nine other members”.

(3) For paragraph 2(2) there shall be substituted—

“ (2) Of the said twenty-nine members of the Council—

(a) eighteen shall be elected by registered dentists from among themselves;

(b) four shall be the persons who are for the time being the chief dental officers of each of the Department of Health and Social Security, the Welsh Office

PART I

and the Department of Health and Social Services for Northern Ireland and the chief dental officer to the Secretary of State for Scotland ;

(c) six, who shall not be registered dentists and of whom three shall be chosen for England and one for each of Scotland, Wales and Northern Ireland, shall be nominated by Her Majesty on the advice of Her Privy Council ;

(d) one shall be elected in accordance with paragraph 14(9) of Part II of this Schedule ;

and of the remaining members, all of whom shall be registered dentists, the University of London (so long as it is a dental authority) shall nominate two, and every other authority which is for the time being a dental authority shall nominate one."

(4) In paragraph 2(3) (six persons to be nominated by General Medical Council to act as members of the Council for certain limited purposes), for the word "six" there shall be substituted the word "three".

(5) In paragraph 3(3) (under which, of the eleven elected members, seven are to be elected in England, the Isle of Man and Channel Islands), for the words "eleven" and "seven" there shall be substituted the words "eighteen" and "fourteen" respectively.

(6) For paragraph 5 there shall be substituted—

"5.—(1) The General Dental Council shall elect a registered dentist as President from among the persons who are for the time being members of the Council.

(2) If the President when he takes office is an elected or nominated member of the Council he shall thereupon cease to be such a member, and the Council shall accordingly take the appropriate steps to fill the vacancy so created.

(3) The period for which the President shall hold office shall be the period for which a nominated member of the Council taking office at the same time as the President would hold office."

(7) For paragraph 7(2) there shall be substituted—

"(2) The Council shall, in particular, have power to pay to their members (including those nominated by the General Medical Council) such fees and such travelling, subsistence or other allowances as they may determine."

2. In section 1(1) of the principal Act (general duty of Council to promote high standards of professional education and professional conduct among dentists), for the words "professional education and" there shall be substituted the words "dental education at all its stages and of".

PART I
General
duties of
Council.

PART II

THE DENTAL PROFESSION

Registration

3.—(1) A person shall not under section 2 (graduates and licentiates of dental authorities) or section 2A (holders of European diplomas) of the principal Act be entitled to be registered in the dentists register unless he satisfies the registrar as to the following matters, namely—

Additional
requirements
for
registration
and
requirements
for restoration
to the
register.

- (a) his identity ;
- (b) that he is of good character ; and
- (c) that he is in good health, both physically and mentally.

(2) The registrar shall not restore the name of a person to the register under section 18(2) or 21(4) of the principal Act (restoration of name erased for failure to pay a fee or to answer an inquiry by the registrar) unless that person satisfies him as to the matters specified in paragraphs (a) to (c) of subsection (1) above.

4.—(1) The diplomas granted in countries overseas and recognised for the time being by the Council for the purposes of the principal Act shall be known as recognised overseas diplomas instead of as Commonwealth or foreign diplomas.

Registration
of holders of
recognised
overseas
diplomas.

(2) A person shall not under section 12 of that Act be entitled to be registered in the dentists register by virtue of a recognised overseas diploma unless, in addition to the matters specified in paragraphs (a) to (c) of subsection (1) of that section, he satisfies the registrar as to the following matters, namely—

- (a) his identity ;
- (b) that he has the necessary knowledge of English ; and
- (c) that he is in good health, both physically and mentally.

(3) An applicant for registration has the necessary knowledge of English if he has the knowledge which, in the interests of himself and his patients, is necessary for the practice of dentistry in the United Kingdom.

5.—(1) A direction under section 13 of the principal Act (temporary registration of holders of recognised overseas diplomas) shall be given with a view to permitting a person to practise dentistry only in a particular post in a hospital or other

Temporary
registration.

PART II institution, and any such direction shall accordingly specify the post as respects practice in which the person concerned is to be registered under that section.

(2) No direction shall be given under that section unless the person concerned has satisfied the registrar as to the matters specified in paragraphs (a) to (c) of section 4(2) above and in addition—

- (a) that he is of good character ; and
- (b) that he has the requisite knowledge and skill for the efficient practice of dentistry in the post in question.

Notification
of reasons for
refusal of
application for
registration
etc.

6. Where the registrar refuses—

- (a) an application for registration in the dentists register under section 2, 2A or 12 of the principal Act,
- (b) an application for a direction to be given under section 13 of that Act, or
- (c) an application to be restored to the register under section 18(2) or 21(4) of that Act,

he shall notify the applicant in writing of his reasons for refusing the application ; and any such notification may be sent by post.

Qualification for degree or licence in dentistry

Minimum age
to qualify for
degree or
licence in
dentistry.

7. It shall no longer be a condition of a person's admission under section 6 of the principal Act to the examinations held by a dental authority that he has attained the age of 21 years ; but (notwithstanding anything in any enactment, charter or other document) no degree or licence in dentistry shall be granted by a dental authority to a person who has not attained that age.

Dental education

Supervision
of
examinations.

8.—(1) Section 7 of the principal Act (supervision of examinations) shall be amended as follows.

(2) In subsection (1) (dental authorities to furnish Council with information relating to the grant of a degree or licence in dentistry)—

- (a) after the words “ licence in dentistry ” there shall be inserted the words “ or any additional diploma in dentistry ” ; and
- (b) for the words “ or licence ” in the second place where they occur there shall be substituted the words “ , licence or diploma ”.

(3) For subsection (2) (presence at examinations of members of Council or persons appointed by them and remuneration of persons so present) there shall be substituted—

“(2) Any member of the General Dental Council or other person, being a member or person appointed for the purpose by the Council, may be present at any such examinations, and the Council shall have power to remunerate persons so appointed who are not members of the Council for being present at the examinations.”

9.—(1) Section 9 of the principal Act (attendance of visitors at dental schools) shall be amended as follows.

Visiting of dental schools and post-graduate institutions.

(2) At the end of subsection (1) (appointment of persons to visit places where instruction is given to dental students under the direction of a dental authority) there shall be inserted the words “or to post-graduate students in dentistry under the direction of a dental authority or any other body.”

(3) In subsection (3) (sending of visitor's report to, and observations etc. by, the dental authority in question)—

(a) for the words “in question” there shall be substituted the words “or other body under whose direction the instruction in question was given”; and

(b) for the words “a dental authority” there shall be substituted the words “that dental authority or body”.

(4) For subsection (5) (power to remunerate visitors at rates approved by the Privy Council) there shall be substituted—

“(5) The Council shall have power to remunerate persons who are not members of the Council for acting as visitors under this section.”

10. After section 12 of the principal Act (registration of holders of overseas diplomas) there shall be inserted—

Visits in connection with overseas diplomas.

“Visits for purposes of s. 12.

12A.—(1) The Council may appoint persons to attend any examinations held for the purposes of section 12 of this Act, who shall report to the Council as to the adequacy of the examinations for testing the knowledge and skill of those taking them.

(2) For the purpose of satisfying themselves that it is appropriate to recognise under subsection (3) of that section any diploma granted by an overseas institution, the Council may appoint persons to visit that institution and to attend the examinations to be taken in order to obtain the diploma.

(3) The persons appointed under subsection (2) of this section shall report to the Council as to the suffi-

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ciency of the instruction given in the institution and as to the adequacy of the examinations concerned for testing the knowledge and skill of those taking them.

(4) The Council shall have power to remunerate persons who are not members of the Council for acting as visitors under subsection (1) or (2) of this section."

**Constitution
of Education
Committee.**

11. In paragraph 10(1) of Schedule 1 to the principal Act (Education Committee to consist of the President and eight other members of the Council who are registered dentists and certain nominated members) before the word "eight" there shall be inserted the words "at least".

Use of titles

Use of titles.

12.—(1) In section 15(3) of the principal Act (prescription of titles which may be used by practitioners in special and distinctive branches of dentistry) the word "special" shall cease to have effect.

(2) After the said section 15(3) there shall be inserted—

"(3A) In the case of any prescribed title regulations under subsection (3) of this section may provide—

(a) for a list to be kept by the Council of the names of registered dentists who are qualified under such regulations to use that title; and

(b) for any registered dentist who is so qualified to be entitled to have his name entered in the list;

and where regulations so provide as aforesaid nothing in that subsection shall permit that title to be used by any such dentist unless his name has been entered in the list.

(3B) The Council shall cause a correct copy of any list for the time being kept by them in pursuance of subsection (3A) of this section to be appended to any copy of the dentists register printed, published and sold in accordance with section 20 of this Act."

The dentists register

**The dentists
register.**

13.—(1) The dentists register shall no longer contain the three separate lists referred to in paragraphs (a) to (c) of section 16(1) of the principal Act, and the registration of persons in the register shall accordingly be effected in such manner as the Council may provide by regulations under section 18 of that Act.

(2) Section 16(7) of the principal Act (penalty for falsification of register) shall cease to have effect.

Professional conduct

PART II

14.—(1) The Disciplinary Committee constituted under paragraph 12 of Schedule 1 to the principal Act shall be known instead as the Professional Conduct Committee.

(2) Accordingly in any enactment or instrument passed or made before the commencement of subsection (1) above for any reference to the Disciplinary Committee there shall be substituted a reference to the Professional Conduct Committee.

(3) In the said paragraph 12—

(a) in sub-paragraph (1) (Committee to consist of the President and ten other members of the Council of whom at least four must be elected members) for the word “four” there shall be substituted the word “five”; and

(b) for sub-paragraph (5) there shall be substituted—

“(5) The quorum for a meeting of the Professional Conduct Committee shall be seven, of whom at least two shall be elected members of the Council and at least one shall be neither an elected member of the Council nor a registered dentist.”

15.—(1) For section 25(1) of the principal Act (erasure from register for crime or infamous conduct) there shall be substituted—

“(1) A registered dentist who (whether before or after registration)—

(a) has been convicted in the United Kingdom of a criminal offence or has been convicted elsewhere of an offence which, if committed in England and Wales, would constitute a criminal offence, or

(b) has been guilty of serious professional misconduct, shall be liable to have his name erased from the register, or to have his registration in it suspended, in accordance with section 26(3) of this Act; and any case of a person alleged to be so liable is in this Act referred to as a “disciplinary case”.

Erasure from register, or suspension of registration, for crime or serious professional misconduct.

(2) In section 26(3) of that Act (power of Professional Conduct Committee to determine that a person's name shall be erased from the register) for the words from “may determine” onwards there shall be substituted the words “or to have his registration suspended, may, if they think fit, determine—

(a) that his name shall be erased from the register, or

(b) that his registration in it shall be suspended for such period not exceeding twelve months as may be specified in their determination.”

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(3) In consequence of subsections (1) and (2) above—

- (a) subsections (2) and (5) of section 25 of the principal Act shall cease to have effect ;
- (b) in sections 26(4) and 29(1) of that Act, after the words “from the register” there shall be inserted the words “or that his registration shall be suspended” ; and
- (c) in section 27(1)(e) of that Act, for the words “infamous or disgraceful conduct in a professional respect” and “such conduct” there shall be substituted the words “serious professional misconduct” and “such misconduct” respectively.

(4) After section 29 of the principal Act there shall be inserted—

“Orders
for
immediate
suspension.

29A.—(1) If the Professional Conduct Committee, on making a determination that the name of a person shall be erased from the register or that his registration shall be suspended, are satisfied—

- (a) that it is necessary for the protection of members of the public, or
- (b) that it would be in the best interests of that person,

to do so, they may order that his registration in the register shall be suspended forthwith ; and in that event his registration in the register shall be suspended by virtue of this section from the time when the order is made until the time when the period for bringing an appeal against the said determination under section 29 of this Act expires or, if such an appeal is brought, the appeal is determined or withdrawn or is struck out for want of prosecution.

(2) Where the Professional Conduct Committee make an order under this section the registrar shall forthwith serve on the person to whom it applies a notification of the order and of his right to make an application under subsection (4) of this section ; and any such notification may be served in the same manner as a notification under section 26(4) of this Act.

(3) If when an order is made the person to whom it applies is neither present nor represented at the proceedings, subsection (1) of this section shall have effect as if, for the reference to the time when the order is made, there were substituted a reference to the time when notification of the order is served under subsection (2) of this section.

PART II

(4) A person whose registration in the register has been suspended under this section may apply to the court for an order terminating the suspension, and the decision of the court on any such application shall be final.

(5) In subsection (4) of this section "the court"—

- (a) in the case of a person whose address in the register is in Scotland, means the Court of Session ;
- (b) in the case of a person whose address in the register is in Northern Ireland, means Her Majesty's High Court of Justice in Northern Ireland ; and
- (c) in the case of any other person, means Her Majesty's High Court of Justice in England."

(5) After section 30 of that Act there shall be inserted—

" Effect of
suspension
of
registration.

30A.—(1) While a person's registration in the register is suspended by virtue of a determination or order of the Professional Conduct Committee he shall be treated as not being registered in the register, notwithstanding that his name still appears in it.

(2) Where any such determination or order takes effect in relation to any person in accordance with section 29 or 29A of this Act the registrar shall make a note in the register of that fact and of the period for which his registration is to be suspended ; and the registrar shall erase the note from the register at such time as the determination or order (for any reason) ceases to have effect."

16.—(1) Where the Preliminary Proceedings Committee ("the Committee")—

Interim
suspension
orders.

- (a) decide that the case of a person who is alleged to have been convicted as mentioned in section 25(1) of the principal Act (grounds for erasure or suspension), or to have been guilty of any such misconduct as is there mentioned, ought to be referred to the Professional Conduct Committee under section 26 of that Act (disciplinary cases), and
- (b) are satisfied that it is necessary for the protection of members of the public to make an order under this section in respect of that person,

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they may order that his registration in the register shall be suspended in accordance with the following provisions of this section pending the determination of his case by the Professional Conduct Committee.

(2) The Committee may make any such order notwithstanding—

- (a) in the case of a person alleged to have been convicted as aforesaid, that any proceedings by way of appeal are pending in respect of the conviction in question ; or
- (b) in the case of a person alleged to have been guilty of any such misconduct as aforesaid, that any criminal charge has been, or might be, brought in respect of the alleged misconduct.

(3) No order shall be made under this section in respect of a person unless he has been afforded an opportunity of appearing before the Committee and of being heard on the question whether such an order should be made in his case ; and for the purposes of this subsection a person may be represented before the Committee by counsel or a solicitor, or (if rules under paragraph 9 of Schedule 1 to the principal Act so provide and he so elects) by a person of such other description as may be specified in the rules.

(4) Where the Committee make an order under this section the registrar shall forthwith serve on the person to whom it applies a notification of the order and of his right to make an application for the termination of the order under subsection (8) below ; and the registration of that person in the register shall be suspended by virtue of this section from the time when the notification is so served until such time as the order is revoked under subsection (5) or (6) below.

(5) Any order under this section shall be reviewed by the Committee not later than three months after the date of its making and subsequently at intervals of not more than three months ; and where the Committee on any such review are satisfied that the continuation in force of the order is not necessary for the protection of members of the public they shall revoke the order.

(6) Where the case of a person to whom an order under this section applies is determined by the Professional Conduct Committee under section 26 of the principal Act, the Professional Conduct Committee shall revoke the order either forthwith or, if they make an order for immediate suspension taking effect under section 29A(3) of that Act, as from the time when that order so takes effect.

(7) Where an order under this section is revoked under subsection (5) or (6) above the registrar shall forthwith serve on the person concerned a notification of the revocation of the order.

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(8) Any notification required to be served on a person by the registrar under this section may be served in the same manner as a notification under section 26(4) of the principal Act; and subsections (4) and (5) of section 29A of that Act (application to court for termination of order under that section) and section 30A of that Act (effect of suspension of registration) shall have effect in relation to an order under this section as they have effect in relation to an order of the Professional Conduct Committee under the said section 29A.

(9) The Council shall report to the Dental Board of the Republic of Ireland every case in which an order is made under this section in respect of a person registered in the dental register of the Republic of Ireland.

PART III

FITNESS TO PRACTISE

17.—(1) For the purposes of this Part of this Act there shall be established a committee of the Council to be known as the Health Committee, which shall be constituted as Her Majesty may provide by Order in Council. The Health Committee.

(2) Without prejudice to the generality of paragraph 9 of Schedule 1 to the principal Act, rules may be made by the Council under that paragraph with respect to the appointment of members to, and the proceedings (including quorum) of, the Health Committee.

(3) An Order in Council made under subsection (1) above shall be subject to annulment in pursuance of a resolution of either House of Parliament.

18.—(1) Where the fitness of a registered dentist to practise is judged by the Health Committee to be seriously impaired by reason of his physical or mental condition, the Committee may, if they think fit, direct— Powers of Health Committee.

- (a) that his registration in the register shall be suspended for such period not exceeding twelve months as may be specified in the direction; or
- (b) that his registration shall be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such requirements so specified as the Committee think fit to impose for the protection of the public or in his own interests.

(2) Where a registered dentist whose registration is for the time being conditional on his compliance with requirements

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imposed under this section is judged by the Health Committee to have failed to comply with any of those requirements, the Committee may, if they think fit, direct that his registration in the register shall be suspended during such period not exceeding twelve months as may be specified in the direction.

(3) Where the Health Committee have given a direction for suspension under subsection (1)(a) or (2) above, they may subsequently—

- (a) direct that the current period of suspension shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ;
- (b) direct that the registration of the person whose registration is suspended shall, as from the expiry of the current period of suspension, be conditional on his compliance, during such period not exceeding three years as may be specified in the direction, with such requirements so specified as the Committee have power to impose under subsection (1)(b) above ;

but the Committee shall not extend any period of suspension under this section by more than twelve months at a time.

(4) Where the Health Committee have given a direction for conditional registration under this section, the Committee may subsequently revoke that direction or do one or more of the following things, namely—

- (a) revoke any of the requirements imposed by that direction ;
- (b) direct that any of those requirements shall be varied in such manner as may be specified in the direction ;
- (c) direct that the current period of conditional registration shall be extended for such further period from the time when it would otherwise expire as may be specified in the direction ;

but the Committee shall not extend any period of conditional registration under this section by more than twelve months at a time.

(5) Where the Health Committee give any direction under this section the registrar shall forthwith serve on the person to whom it applies a notification of the direction and of his right to appeal against it in accordance with section 19 below ; and where the Committee under subsection (4) above revoke any direction or requirement of a direction the registrar shall forthwith serve on the person to whom the direction applied or, as the case may be, applies a notification of the revocation.

19.—(1) Where a person is notified under subsection (5) of section 18 above that the Health Committee have given a direction in respect of him under that section, he may, within twenty-eight days from the service of the notification, appeal against that direction on any question of law to Her Majesty in Council. PART III
Appeals
against
directions
under s. 18.

(2) An appeal under this section shall be made in accordance with such rules as Her Majesty may by Order in Council provide for the purposes of this section; and the Judicial Committee Act 1833 c. 41. shall apply in relation to the Health Committee as it applies in relation to a court falling within section 3 of that Act (appeals to Her Majesty in Council to be referred to the Judicial Committee of the Privy Council).

(3) Without prejudice to the application of that Act, on an appeal under this section the Judicial Committee may, in their report, recommend to Her Majesty in Council—

- (a) that the appeal be dismissed;
- (b) that the appeal be allowed and that the direction appealed against be quashed;
- (c) that such other direction as the Health Committee could have given be substituted for the direction appealed against; or
- (d) that the case be remitted to the Health Committee to dispose of the case under section 18 above in accordance with the directions of the Judicial Committee.

(4) The General Dental Council may appear as respondent on any appeal under this section; and for the purpose of enabling directions to be given as to the costs of any such appeal the Council shall be deemed to be a party to it, whether they appear on the hearing of the appeal or not.

20.—(1) Where no appeal is brought against any direction under section 18 above within the period mentioned in section 19(1) above, the direction shall take effect at the expiry of that period. Time when
directions
normally take
effect and
orders for
immediate
suspension.

(2) Where an appeal is so brought against any such direction, then (subject to section 21(2) below) the direction shall not take effect until such time as the appeal is dismissed or withdrawn or is struck out for want of prosecution.

(3) If the Health Committee, on giving a direction for suspension in respect of any person under section 18(1) or (2) above, are satisfied—

- (a) that it is necessary for the protection of members of the public, or
- (b) that it would be in the best interests of that person,

PART III

to do so, they may order that his registration in the register shall be suspended forthwith; and in that event his registration in the register shall be suspended by virtue of this subsection from the time when the order is made until the time when the period for bringing an appeal against the said direction under section 19 above expires or, if such an appeal is brought, the appeal is determined or withdrawn or is struck out for want of prosecution.

(4) Where the Health Committee make an order under subsection (3) above the registrar shall forthwith serve on the person to whom it applies a notification of the order and of his right to make an application under subsection (6) below.

(5) If when an order is made under subsection (3) above the person to whom it applies is neither present nor represented at the proceedings, that subsection shall have effect as if, for the reference to the time when the order is made, there were substituted a reference to the time when notification of the order is served under subsection (4) above.

(6) A person whose registration in the register has been suspended under subsection (3) above may apply to the court for an order terminating the suspension, and the decision of the court on any such application shall be final.

(7) In subsection (6) above "the court"—

- (a) in the case of a person whose address in the register is in Scotland, means the Court of Session;
- (b) in the case of a person whose address in the register is in Northern Ireland, means Her Majesty's High Court of Justice in Northern Ireland; and
- (c) in the case of any other person, means Her Majesty's High Court of Justice in England.

Special provisions where directions replace, or extend periods under previous directions.

21.—(1) Where any such direction as is mentioned in section 18(2), (3) or (4)(c) above is given while a person's registration is subject to conditions or suspended by virtue of this Part of this Act, his registration shall continue to be conditional or suspended throughout any period which may intervene between the time when (but for this subsection) his registration would cease to be conditional or suspended, as the case may be, and the time when—

- (a) the period for bringing an appeal against the direction under section 19 above expires; or
- (b) if such an appeal is brought, the appeal is determined or withdrawn or is struck out for want of prosecution.

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(2) If, however, on the determination of any appeal under section 19 above any such direction as is mentioned in section 18(2), (3) or (4)(c) above takes effect after the time when (but for subsection (1) above) the current period of conditional registration or suspension referred to in the said provision of section 18 would have ended, the period for which that direction is to have effect shall be treated as having started to run at that time.

22.—(1) While a person's registration in the register is suspended by virtue of a direction or order under this Part of this Act he shall be treated as not being registered in the register, notwithstanding that his name still appears in it. Supplementary provisions.

(2) Schedule 1 to this Act shall have effect for the purpose of supplementing the provisions of this Part of this Act.

PART IV

RESTRICTIONS ON PRACTICE, ETC.

Restrictions on practice of dentistry

23.—(1) In section 33(2) of the principal Act (dental work not to amount to the practice of dentistry if undertaken as part of a course of instruction)— Restrictions on students etc. and laymen.

(a) after the words "if it is undertaken" there shall be inserted the words "under the direct personal supervision of a registered dentist"; and

(b) after the words "in the course of his studies" there shall be inserted the words "(whether or not under the supervision of a registered dentist)".

(2) In section 34 of that Act (prohibition on practice of dentistry by laymen)—

(a) subsections (2) and (4) of that section (which allow certain minor dental work to be undertaken by chemists and other laymen) shall cease to have effect; and

(b) for subsection (3) of that section there shall be substituted—

"(3) Summary proceedings for an offence under this section may be brought within the period of six months beginning with the date on which evidence sufficient in the opinion of the prosecutor to warrant the proceedings came to his knowledge; but no such proceedings shall be brought by virtue of this subsection more than two years after the commission of the offence.

(3A) For the purposes of subsection (3) of this section a certificate signed by or on behalf of the

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prosecutor and stating the date on which such evidence as is mentioned in that subsection came to his knowledge shall be conclusive evidence of that date, and any certificate purporting to be so signed shall be taken to have been so signed unless the contrary is proved."

Restrictions on carrying on the business of dentistry

Restriction on individuals.

24. After section 37(1) of the principal Act (restriction on individuals carrying on the business of dentistry unless they were carrying it on on 21st July 1955) there shall be inserted—

" (1A) The exemption conferred by subsection (1) of this section on persons who were carrying on the business of dentistry on the date there mentioned shall not extend to any person who has at any time ceased to be a registered dentist in consequence of his name being erased from the register, or his registration in it being suspended, under section 25 of this Act.

(1B) This section shall not operate to prevent a person from carrying on the business of dentistry during any period for which his registration in the register is suspended under section 16 of the Dentists Act 1983 (interim suspension orders) or under Part III of that Act (health cases); and subsections (2) and (4) of this section shall apply in relation to a person whose registration is so suspended as they apply in relation to a registered dentist."

Restrictions on bodies corporate.

25.—(1) After subsection (3) of section 39 of the principal Act (bodies corporate entitled to carry on business of dentistry) there shall be inserted—

" (3A) If a body corporate exempted by this section ceases at any time to carry on the business of dentistry, the exemption conferred by this section shall not extend to that body on any subsequent occasion when it carries on the business of dentistry."

(2) At the end of section 40 of that Act (withdrawal from bodies corporate of right to carry on the business of dentistry) there shall be added—

" (6) References in this section to the erasure of the name, or to the conviction, of a director of a body corporate include references to the erasure of the name, or to the conviction, of any person who was a director of a body corporate at the time of the offence or misconduct leading to the erasure or conviction."

PART V

DENTAL AUXILIARIES

26.—(1) The persons to whom Part IV of the principal Act applies shall be known as dental auxiliaries instead of as ancillary dental workers, and the Ancillary Dental Workers Committee constituted under paragraph 14 of Schedule 1 to that Act shall be known instead as the Dental Auxiliaries Committee. Dental auxiliaries and Dental Auxiliaries Committee.

(2) Accordingly in any enactment or instrument passed or made before the commencement of subsection (1) above for any reference to ancillary dental workers, an ancillary dental worker or the Ancillary Dental Workers Committee there shall be substituted a reference to dental auxiliaries, a dental auxiliary or the Dental Auxiliaries Committee, respectively.

(3) For paragraph 14 of Schedule 1 to the principal Act there shall be substituted—

“ 14.—(1) The Dental Auxiliaries Committee shall consist of—

(a) the President ;

(b) at least eight (but not more than ten) other members of the Council, being either elected or nominated members or persons within paragraph 2 (2)(b) of Part I of this Schedule ; and

(c) nine persons not within paragraph (a) or (b) of this sub-paragraph.

(2) At least two of the members referred to in sub-paragraph (1)(b) of this paragraph shall not be registered dentists.

(3) Three of the nine members referred to in sub-paragraph (1)(c) of this paragraph shall be appointed by the Secretaries of State respectively concerned with health in England and Wales and Scotland and the head of the Department of Health and Social Services for Northern Ireland acting jointly, and two of the three so appointed shall be registered dentists who are or have been employed in the course of the provision of national health services.

(4) The three members so appointed and their successors shall retire together at the end of successive three year periods, and an appointment made in the course of one of those periods to fill a casual vacancy shall be for the remainder of that period.

(5) The other six of the members referred to in sub-paragraph (1)(c) of this paragraph shall be elected by members of all the classes of dental auxiliaries established by regulations under this Act in such manner and at such intervals as may be provided by rules made by the Council.

PART V

(6) The Council shall pay to members of the Committee who are not members of the Council allowances and fees at the same rates as in the case of those who are members of the Council.

(7) The chairman of the Committee shall be chosen by the Committee from among the members of the Committee who are registered dentists.

(8) The Committee may appoint a sub-committee, which shall consist of not more than nine members, to deal with disciplinary questions connected with members of a class of dental auxiliaries.

(9) The member of the Council referred to in paragraph 2(2)(d) of Part I of this Schedule shall be elected by the Committee from among its members who have been elected under sub-paragraph (5) of this paragraph; and a person so elected shall cease to be a member of the Council if he ceases to be a member of the Committee or when the term of office of elected members of the Council next expires in accordance with paragraph 3(1) of the said Part 1, whichever first occurs."

Restrictions
on dental
work
undertaken
by dental
auxiliaries.

27.—(1) Her Majesty may by Order in Council—

- (a) provide that subsection (1)(b) of section 42 of the principal Act (restriction on filling of teeth or extraction of deciduous teeth except in the course of the provision of national health services) shall cease to have effect in relation to any class of dental auxiliaries specified in the Order;
- (b) repeal the following provisions of that section, namely in subsection (2) the words "in the course of the provision of national health services" and subsection (3) (by virtue of which different requirements as to supervision are imposed depending on whether or not dental work is done in the course of the provision of national health services).

(2) An Order in Council under this section shall not be made unless a draft of the Order has been laid before Parliament and approved by a resolution of each House.

Proceedings
before Dental
Auxiliaries
Committee
and appeals.

28. At the end of section 45 of the principal Act (provisions relating to the committee that is to be known as the Dental Auxiliaries Committee) there shall be added—

"(4) In relation to any decision of the Committee under regulations made by virtue of subsection (3) of this section that a person's name shall be erased from a roll or record

established pursuant to section 41(2) of this Act, section 29 of this Act shall, with the necessary modifications, apply as it applies in relation to a determination of the Professional Conduct Committee that a person's name shall be erased from the register; and section 46 of this Act shall apply to proceedings brought before the Committee under any such regulations and relating to the erasure of a person's name from any such roll or record as it applies to proceedings brought before the Professional Conduct Committee in a disciplinary case.

PART V

(5) References to the Committee in subsection (4) of this section include references to a sub-committee of the Committee."

PART VI

MISCELLANEOUS AND SUPPLEMENTARY

Miscellaneous

29.—(1) If Her Majesty's Government in the United Kingdom and the Government of the Republic of Ireland agree to terminate the Agreement with respect to the registration and control of dentists set out in Part II of the Schedule to the Medical and Dentists Acts Amendment Act 1927, Her Majesty may by Order in Council—

Termination of the 1927 Agreement with the Republic of Ireland.
1927 c. 39.

(a) effect such repeals in that Act and any relevant enactment, and

(b) make such modifications of the principal Act,

as appear to Her to be necessary or expedient in consequence of, or in connection with, the termination of the said Agreement.

(2) An Order in Council under this section may—

(a) appoint different days for different repeals or modifications to take effect under the Order; and

(b) contain such transitional and saving provisions as appear to Her Majesty to be necessary or expedient.

(3) An Order in Council under this section which repeals any provision by virtue of which a university or other body in the Republic of Ireland is a dental authority shall include provision preserving the right to registration or continued registration in the register of persons who, immediately before the coming into force of the Order, are entitled to be or are registered under section 2 of the principal Act in virtue of a qualification awarded by that university or body.

PART VI
1978 c. 12.

(4) In this section "relevant enactment" means the principal Act, this Act, section 4 of the Medical Act 1978 or any Order in Council under that section, and in relation to any such Order references to repeals shall be construed accordingly.

(5) An Order in Council made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Provisions
as to
proceedings
before
Professional
Conduct
Committee in
Scotland and
Northern
Ireland.

30.—(1) Section 46 of the principal Act (provisions as to proceedings before Professional Conduct Committee) shall be amended as follows.

(2) In subsection (1) (administration of oaths and issuing of subpoenas) after the word "Committee" in the first place where it occurs there shall be inserted the words "in England and Wales or Northern Ireland,".

(3) For subsection (2) there shall be substituted—

1981 c. 54.
1978 c. 23.

"(2) Section 36 of the Supreme Court Act 1981 and section 67 of the Judicature (Northern Ireland) Act 1978 (subpoena issued by High Court to run throughout United Kingdom) shall apply in relation to any such proceedings in England and Wales and in Northern Ireland respectively as they apply in relation to causes or matters in the High Court.

(2A) For the purposes of any such proceedings in Scotland the Professional Conduct Committee may administer oaths and the Court of Session shall on the application of any party to the proceedings have the like power as in any action in that court—

- (a) to grant warrant for the citation of witnesses and havers to give evidence or to produce documents before the Committee, and for the issue of letters of second diligence against any witness or haver failing to appear after due citation ;
- (b) to grant warrant for the recovery of documents ; and
- (c) to grant commissions to persons to take the evidence of witnesses or to examine havers and receive their exhibits and productions."

Assimilation
of penalties
in Northern
Ireland with
penalties in
England, Wales
and Scotland.

31.—(1) Each of the following provisions of the principal Act, namely—

- (a) subsection (1) of section 34 (prohibition on practice of dentistry by laymen),
- (b) subsection (2) of section 35 (prohibition on use of practitioners' titles by laymen), and

- (c) subsection (1) of section 37 (restriction on individuals carrying on the business of dentistry),

shall have effect in Northern Ireland as if for paragraphs (a) and (b) thereof there were substituted the words "on summary conviction to a fine not exceeding the fifth level on the standard scale".

(2) Each of the following provisions of the principal Act, namely—

- (a) subsections (2) and (4) of section 15 (restrictions on use of titles and descriptions by registered dentists),
- (b) subsection (1) of section 38 (restrictions on bodies corporate carrying on the business of dentistry), and
- (c) subsections (4) and (5) of section 41 (penalties for improper use of titles and descriptions by dental auxiliaries and other persons),

shall have effect in Northern Ireland as if for the reference to a fine not exceeding the amount there mentioned there were substituted a reference to a fine not exceeding the third level on the standard scale.

(3) In this section "the standard scale" has the meaning given by section 37 of the Criminal Justice Act 1982, and for the purposes of this section—

- (a) the said section 37, and
- (b) an order under section 143 of the Magistrates' Courts Act 1980 which alters the sums specified in subsection (2) of the said section 37,

shall extend to Northern Ireland.

Supplementary

32.—(1) In this Act—

Interpretation.

"the Council" means the General Dental Council; and

"the principal Act" means the Dentists Act 1957.

1957 c. 28.

(2) Any expression used in this Act which is also used in the principal Act has the same meaning as in that Act.

33.—(1) The enactments mentioned in Schedule 2 to this Act shall have effect subject to the minor and consequential amendments specified in that Schedule.

Minor and consequential amendments and repeals.

(2) The enactments mentioned in Schedule 3 to this Act (which include certain obsolete or unnecessary provisions) are

PART VI hereby repealed to the extent specified in the third column of that Schedule.

S.I. 1980/703. (3) The following provisions of the Dental Qualifications (EEC Recognition) Order 1980 are hereby revoked, namely Article 3(2) and (3) and, in Article 7, in paragraph (1) the words " but subject to paragraph (2) below " and paragraph (2).

Commence-
ment,
transitional
provisions and
savings.

34.—(1) The following provisions of this Act shall come into force on 1st January 1984—

- (a) sections 1(1) and (7) and 2 ;
- (b) Part II, except sections 11 and 14 to 16 ;
- (c) Parts IV and V except sections 26(3) and 28 ;
- (d) sections 29 to 32.
- (e) paragraphs 1, 3 to 10, 11(b), 12(b), 15, 16, 18 to 22 and 24 of Schedule 2 and section 33(1) so far as relating thereto ;
- (f) Part I of Schedule 3 and section 33(2) so far as relating thereto ;
- (g) section 33(3), this section and Schedule 4, and section 35.

(2) The following provisions of this Act shall come into force on 1st October 1984—

- (a) sections 1(2) to (6), 11, 14 to 16, 26(3) and 28 ;
- (b) paragraphs 2, 11(a), 12(a), 13, 14, 17 and 25 of Schedule 2 and section 33(1) so far as relating thereto ;
- (c) Part II of Schedule 3 and section 33(2) so far as relating thereto.

(3) The remaining provisions of this Act, namely—

- (a) Part III (including Schedule 1) ; and
- (b) paragraph 23 of Schedule 2 and section 33(1) so far as relating thereto,

shall come into force on such day as Her Majesty may by Order in Council appoint, and different days may be appointed for, or for different purposes of, different provisions.

(4) The transitional and saving provisions contained in Schedule 4 to this Act shall have effect ; and Her Majesty may by Order in Council provide for such further transitional and saving provisions to have effect in connection with the coming into force under this section of any of the provisions of this Act as appear to Her Majesty to be necessary or expedient.

35.—(1) This Act may be cited as the Dentists Act 1983.

PART VI

(2) This Act and the Dentists Acts 1957 and 1973 may be cited together as the Dentists Acts 1957 to 1983.

Citation and
extent.

(3) This Act extends to Northern Ireland.

SCHEDULES

Section 22(2).

SCHEDULE 1

FITNESS TO PRACTISE: SUPPLEMENTARY PROVISIONS

Procedure of Health Committee

1.—(1) Sections 27 and 28 of the principal Act (procedural rules and assessors), except section 27(1)(d) and (e), shall apply in relation to proceedings before the Health Committee under this Act as they apply in relation to proceedings before the Professional Conduct Committee under section 26 of that Act.

(2) Rules under the said section 27, as applied by sub-paragraph (1) above, shall in particular make provision—

(a) for requiring that before any case is considered by the Health Committee (otherwise than under paragraph 2 below) it shall have been considered by a member of the Council appointed for the purpose by the Council and referred by that person to the Committee; and

(b) for the appointment of medical examiners and medical assessors to assist the Health Committee in proceedings before them under this Act, and for the remuneration of such persons.

Reference and transfer to Health Committee of disciplinary cases

2.—(1) Where in the course of any proceedings under section 26 of the principal Act (disciplinary cases) it appears to the Preliminary Proceedings Committee or to the Professional Conduct Committee that the fitness of a registered dentist to practise may be seriously impaired by reason of his physical or mental condition, that Committee may (notwithstanding anything in the said section 26) refer the question whether it is so impaired to the Health Committee for that question to be determined by them.

(2) If on a reference under sub-paragraph (1) above the Health Committee determine that the fitness of the dentist to practise is not seriously impaired by reason of his physical or mental condition the Health Committee shall certify their opinion to the Committee that made the reference.

(3) If on a reference under sub-paragraph (1) above the Health Committee determine that the fitness of the dentist to practise is seriously impaired by reason of his physical or mental condition the Health Committee shall—

(a) certify their opinion to the Committee that made the reference, and

(b) proceed to dispose of the case under section 18 of this Act; and on the Health Committee so certifying, any functions which would otherwise be exercisable by any committee in relation to that person under section 26 of the principal Act shall cease to be so exercisable.

Evidence before Health Committee

SCH. 1

3.—(1) For the purposes of any proceedings before the Health Committee under this Act in England and Wales or Northern Ireland—

- (a) the Committee may administer oaths ; and
- (b) any party to the proceedings may sue out writs of subpoena ad testificandum and duces tecum ;

but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

(2) Section 36 of the Supreme Court Act 1981 and section 67 of 1981 c. 54. the Judicature (Northern Ireland) Act 1978 (subpoena issued by High 1978 c. 23. Court to run throughout United Kingdom) shall apply in relation to any such proceedings in England and Wales and in Northern Ireland respectively as they apply in relation to causes or matters in the High Court.

(3) For the purposes of any such proceedings in Scotland, the Health Committee may administer oaths and the Court of Session shall on the application of any party to the proceedings have the like power as in any action in that court—

- (a) to grant warrant for the citation of witnesses and havers to give evidence or to produce documents before the Committee, and for the issue of letters of second diligence against any witness or haver failing to appear after due citation ;
- (b) to grant warrant for the recovery of documents ; and
- (c) to grant commissions to persons to take the evidence of witnesses or to examine havers and receive their exhibits and productions.

Service of notifications by registrar

4. Any notification required by Part III of this Act to be served on a person by the registrar may be served by post in a registered letter addressed to that person at his address in the register, or at his last known address if that address differs from his address in the register and it appears to the registrar that such service will be more effective.

Recording of directions and orders under Part III

5.—(1) Where a direction or order for suspension or for conditional registration takes effect in relation to any person in accordance with Part III of this Act, the registrar shall make a note in the register of that fact and of the period for which that person's registration is to be suspended or subject to conditions by virtue of the direction or order.

(2) The registrar shall erase that note from the register at such time as the direction or order (for any reason) ceases to have effect.

SCH. 1

(3) Any reference in this paragraph to a direction for suspension or for conditional registration includes a reference to a direction extending a period of suspension or conditional registration.

Reporting of health cases to Dental Board of Republic of Ireland

6. The Council shall report to the Dental Board of the Republic of Ireland—

- (a) every case in which it is proposed that the question of the fitness to practise of a person registered in the dental register of the Republic of Ireland should be referred to the Health Committee under this Act ; and
- (b) every case in which a direction or order takes effect in relation to any such person in accordance with Part III of this Act.

Meaning of " party "

7. For the purposes of this Schedule, and any provision applied by this Schedule, a person is a party to proceedings before the Health Committee if he is—

- (a) the person to whose registration the proceedings relate ;
- (b) a person on whose complaint the proceedings are brought ;
- or
- (c) a solicitor appointed by the Council to represent them at the proceedings.

Section 33(1).

SCHEDULE 2

MINOR AND CONSEQUENTIAL AMENDMENTS

MEDICAL AND DENTISTS ACTS AMENDMENT
ACT 1927 (c.39)

1. In Article 4 of Part II of the Schedule, the references to registration in the dentists register shall not include registration by virtue of a recognised overseas diploma (as defined by section 14 of the principal Act).

DENTISTS ACT 1957 (c.28)

2. In section 1(1), after " by this Act " insert " and the Dentists Act 1983 ".

3. In section 4(1)—

- (a) in paragraph (c), for " Faculty " substitute " College " ; and
- (b) for " , college or faculty " substitute " or college ".

4. In section 10(1)—

- (a) for " and examinations " substitute " or the examinations " ;
- and
- (b) for " are not " substitute " is or are not ".

5. In section 12—

- (a) in subsection (1)(b), for “a Commonwealth or a foreign diploma” substitute “a recognised overseas diploma”; and
- (b) in subsection (5), for “a foreign diploma” in both places substitute “a recognised overseas diploma”.

6. In section 13—

(a) in subsection (1)—

(i) for the words from “Commonwealth” to “practice” substitute “recognised overseas diploma temporarily to practise dentistry in a particular post in a hospital or other institution, give a direction that he be registered as respects practice in that post”; and

(ii) omit the words from “without” to “case”; and

- (b) in subsection (3), for “a foreign diploma” in both places substitute “a recognised overseas diploma”.

7. For section 14 substitute—

“Meaning 14. In this Act “recognised overseas diploma” means of a diploma granted in a country overseas and recognised for the time being by the General Dental Council for the purposes of this Act, and does not include a recognised European diploma within the meaning of section 2A(1) of this Act.”

8. In section 18(1)(c), for “of additional diplomas of prescribed kinds” substitute “in prescribed circumstances of additional diplomas”.

9. In section 19, for the words from the beginning to “the additional diploma” substitute “Where the name of a person entitled to be registered by virtue of a recognised overseas diploma is entered in the register, or an additional diploma granted in a country overseas is entered against a person’s name in the register, the registrar shall enter that diploma”.

10. In section 25(4)—

- (a) in paragraph (a), for “make a note of the fact in the register” substitute “retain a record of that fact”; and
- (b) in paragraph (b), for the words “such inquiry as is mentioned in subsection (3)” substitute “inquiry under this Act as to whether that person has been guilty as mentioned in subsection (1)(b)”.

11. In section 26—

- (a) in subsection (1) for the words from the beginning to “which” substitute “The Preliminary Proceedings Committee and the Professional Conduct Committee of the General Dental Council”; and
- (b) in subsection (4), after “the Committee” insert “and of his right to appeal against it under section 29 of this Act.”.

SCH. 2

12. In section 28—
- (a) in subsection (2), omit the words from “but if” onwards ; and
 - (b) for subsection (5) substitute—
“ (5) The General Dental Council may pay to persons appointed to act as assessors such remuneration as the Council may determine.”
13. In section 29, after subsection (1) insert—
- “(1A) Without prejudice to the application of that Act, on any such appeal the Judicial Committee may, in their report, recommend to Her Majesty in Council—
- (a) that the appeal be dismissed ;
 - (b) that the appeal be allowed and that the determination be quashed ;
 - (c) that such other determination as the Professional Conduct Committee could have made be substituted for the determination ; or
 - (d) that the case be remitted to the Professional Conduct Committee to dispose of the case under section 26 of this Act in accordance with the directions of the Judicial Committee.”
14. In section 31(2), after “from the register” insert “or in any suspension of a person’s registration in it”.
15. In section 36(2)—
- (a) omit “neither” and the words from “nor” to “this Act” ; and
 - (b) after “shall” insert “not”.
16. In section 39(4), for “the last foregoing subsection” substitute “subsection (3) of this section”.
17. In section 40—
- (a) in subsection (2)(b), for “infamous or disgraceful conduct” substitute “serious professional misconduct” ; and
 - (b) in subsection (4), after “shall” insert “, with the necessary modifications,”.
- 18.—(1) In section 41, after subsection (3) insert—
- “(3A) Regulations under this section may make provision for the appointment of persons to visit places providing courses of instruction approved by the Council under the regulations or to attend examinations so approved by them, and for the remuneration of such persons.”
- (2) The amendment made by sub-paragraph (1) above shall be deemed always to have had effect.
19. In section 46—
- (a) in subsection (1) for the words from “relating to the removal” to “or relating” substitute “, being proceedings brought in a disciplinary case or relating either to the restoration of a person’s name to the register or” ; and

SCH. 2

(b) for subsection (3)(a) substitute—

“(a) in a disciplinary case, the person against whom the proceedings are brought,

(aa) in a case relating to the restoration of a person’s name to the register, that person.”.

20. In section 50(1), insert at the appropriate place—

““recognised overseas diploma” has the meaning assigned to it by section 14 of this Act;”.

21. In paragraph 3 of Schedule 1—

(a) in sub-paragraph (1), for the words from the beginning to second “expiration” substitute “The period for which those elected as members of the General Dental Council shall hold office shall end with 30th September 1986, and at the end of that day, and at the end ”;

(b) in sub-paragraph (2), for “next” substitute “following”.

22. In paragraph 4 of Schedule 1—

(a) in sub-paragraph (1)—

(i) for the words from the beginning to second “expiration” substitute “The period for which those nominated as members of the Council shall hold office shall end with 30th September 1984, and at the end of that day, and at the end ”;

(ii) for the words from “the said” onwards substitute “each of the said periods”; and

(b) in sub-paragraph (4), for the words from “the said period” to “five years” substitute “one of the periods referred to in sub-paragraph (1) above”.

23. In paragraph 8(2) of Schedule 1, after “under this Act” insert “or the Dentists Act 1983”.

24. In paragraph 9(3) of Schedule 1, omit the words from “or the power” onwards.

DENTAL QUALIFICATIONS (EEC RECOGNITION) ORDER 1980 (S.I. 1980/703)

25. In Article 7(1)(b), for “infamous or disgraceful conduct in a professional respect” substitute “serious professional misconduct”.

SCHEDULE 3

Section 33(2).

REPEALS

PART I

REPEALS COMING INTO FORCE ON 1ST JANUARY 1984

Chapter	Short title	Extent of repeal
1956 c. 29. 1957 c. 28.	The Dentists Act 1956. The Dentists Act 1957.	The whole Act. In section 6, the words “has attained the age of twenty-one years and”.

SCH. 3

Chapter	Short title	Extent of repeal
1957 c. 28— <i>cont.</i>	The Dentists Act 1957 — <i>cont.</i>	In section 13(1), the words from "without" to "case". In section 15(3), the word "special". In section 16, in subsection (1) the words from "which shall" onwards, and subsection (7). In section 18, subsection (4), and in subsection (5) the words from "and the Privy Council" onwards. Section 24. Section 25(3). Section 32(1). Section 34(2) and (4). In section 36(2), the word "neither" and the words from "nor" to "this Act". In section 37, subsection (3)(a), and in subsection (4) the words from "or, if he" onwards. In section 41(9), the words from "and the Privy Council" onwards. Sections 43 and 44. Section 49. In section 50(1), the definitions of "Commonwealth diploma", "foreign diploma" and "recognised European diploma". Section 51(4). In Schedule 1, in paragraph 9(3) the words from "or the power" onwards, and paragraph 13. In Schedule 3, paragraph 4.
1962 c. 23.	The South Africa Act 1962.	In Schedule 3, paragraph 4(b).
1973 c. 48.	The Pakistan Act 1973.	In the Schedule, paragraph 13.
1973 c. 49.	The Bangladesh Act 1973.	In Schedule 7, paragraph 19.
1980 c. 43.	The Magistrates' Courts Act 1980.	
1981 c. 54.	The Supreme Court Act 1981.	In Schedule 5, the entry relating to the Dentists Act 1957.

PART II

SCH. 3

REPEALS COMING INTO FORCE ON 1ST OCTOBER 1984

Chapter	Short title	Extent of repeal
1957 c. 28.	The Dentists Act 1957.	Section 25(2) and (5). In section 28(2), the words from "but if" onwards.

SCHEDULE 4

Section 34(4).

TRANSITIONAL PROVISIONS AND SAVINGS

Elections and nominations

1.—(1) For the purpose of enabling—

(a) the President of the Council to take office, and

(b) the Council and the Dental Auxiliaries Committee to be duly constituted in accordance with sections 1(2) to (5) and 26(3) of this Act,

at the commencement of those provisions the appropriate elections or nominations shall be held or made before that commencement.

(2) Rules under paragraph 3(4) of Schedule 1 to the principal Act shall, with the necessary modifications, apply to the election of members held by the Council for the purposes of this paragraph as they apply to an election to fill a casual vacancy; and any election held for those purposes—

(a) by the Council to elect the President, or

(b) by the Dental Auxiliaries Committee to elect a member of the Council,

shall be held in the like manner as if section 1(6) or (as the case may be) section 26(3) of this Act were then in force.

Additional requirements for registration

2. Where any person is registered in the register immediately before the commencement of sections 3 to 5 of this Act, those sections and the amendments in Schedule 2 which are consequential on those sections shall not affect his continued registration in the register under the provision of the principal Act, or (if he is so registered under section 13 of that Act) by virtue of the direction, under or by virtue of which he is so registered.

Abolition of separate lists in register

3. Where, immediately before the commencement of subsection (1) of section 13 of this Act, any person is registered in one of the lists referred to in paragraphs (a) to (c) of section 16(1) of the principal Act, that subsection shall not affect his continued registration in the

- SCH. 4 register as a holder of the qualification by virtue of which he is so registered (except as regards the manner in which that registration is effected).

Proceedings pending before Disciplinary Committee

- S.I. 1980/703. 4.—(1) Section 14 of this Act shall not affect the hearing and determination of any case or other matter referred to the Disciplinary Committee before the commencement of that section.

(2) For the purposes of—

- (a) any case referred to the Disciplinary Committee under section 26 of the principal Act before the commencement of section 15 of this Act, and any appeal or other proceedings arising out of any such case (including proceedings under section 40(2) of the principal Act);

- (b) any case referred to that committee under Article 7 of the Dental Qualifications (EEC Recognition) Order 1980 before that commencement,

the principal Act, and any rules made under section 27 of that Act after the passing of this Act, or (as the case may be) the said Article 7 shall have effect as from that commencement with the substitution for any reference to serious professional misconduct of a reference to infamous or disgraceful conduct in a professional respect.

Restrictions on carrying on the business of dentistry

5. Section 24 of this Act applies to an erasure taking place before the commencement of that section as well as to one taking place later.

6.—(1) Subsection (1) of section 25 of this Act applies to a body corporate ceasing to carry on the business of dentistry before the commencement of that subsection as well as to one ceasing to do so thereafter, unless the body was again carrying on the business of dentistry at that commencement.

(2) Subject to section 40(5) of the principal Act, subsection (2) of section 25 of this Act applies to an erasure taking place before the commencement of that subsection as well as to one taking place later.

Penalties for offences in Northern Ireland

7. Nothing in section 31 of this Act shall affect the punishment for an offence committed before the commencement of that section.